Bear Creek; thence around head of Bear Creek following east bank of Kalutna River to the mouth; thence in northeasterly direction to head of tributaries of Ladue Creek; thence following divide between the tributaries to the Tanana and tributaries to Ladue Creek to head of southernmost tributaries of east fork of Porcupine Creek; and then to place of beginning.

U.S. Survey No. 2547 was executed to accommodate the lands described in Executive Order No. 5365. U.S. Survey No. 2050 and U.S. Survey No. 2779 are located within the boundaries established by Executive Order No. 5365.

Section 19(a) of the Alaska Native Claims Settlement Act of December 18, 1971 (85 Stat. 688, 710; 43 U.S.C. 1601, 1618 (1976)) (ANCSA), revoked, subject to any valid existing rights of non-Natives, the various reserves set aside for Native use or administration of Native affairs. Public Land Order 5156, signed February 4, 1972, withdrew, subject to valid existing rights, the lands set aside for Native use or for administration of Native affairs in furtherance of the right of any Native village corporation or corporations to acquire title to the surface and subsurface estates in the reservations pursuant to Sec. 19(b) of ANCSA.

On November 15, 1973, the Board of Directors for Tetlin Native Corporation certified that its stockholders had elected to acquire title to the surface and subsurface estates in the reserve as provided by Sec. 19(b) of ANCSA. Under 43 CFR 2654.2(a), submission of such certification constituted application to acquire reserve lands.

I. Alaska Native Claims Settlement Act, Section 3(e) Application Rejected

In 1978 the Bureau of Indian Affairs requested that U.S. Survey No. 2050 be designated a Sec. 3(e) application under the Alaska Native Claims Settlement Act. (U.S. Survey No. 2050 encompasses lands in the vicinity of Tetlin formerly reserved under Executive Order No. 5289 for the use of the Office of Education.) Said application has been serialized as case file F–60732.

Section 3(e) of ANCSA defines "public lands" as:

> . . . all Federal lands and interests therein located in Alaska except: (1) the smallest practicable tract, as determined by the Secretary, enclosing land actually used in connection with the administration of any Federal installation. . .

On March 3, 1978, the Secretary of the Interior, in his final decision document for the ANCSA Implementation Review, decided that:

> The Secretary's authority to determine the smallest practicable tract involved with a Federal installation under section 3(e)(1) of the ANCSA applies only to the Statutory withdrawals made by sections 11 and 16(a) and, subsequently, to those lands selected by Village and Regional corporations from such withdrawal areas pursuant to sections 12 and 16(b).

The Secretary's authority to make such determinations does not extend to the various reserves revoked pursuant to Sec. 19(a) of ANCSA and made available for acquisition by village corporations pursuant to Sec. 19(b).

Accordingly, Sec. 3(e) application F–60732 is rejected as to the following described lands:

> U.S. Survey No. 2050, Alaska, situated within the U.S. School Reserve in the village of Tetlin.
> Containing 4.55 acres.

When this decision becomes final, application F–60732 will be closed of record.

II. Reserve Lands Proper for Village Conveyance Approved for Patent

Section 19 of ANCSA provides that if the stockholders of the concerned village corporation elect to take former reserve lands:

> . . . the Secretary [of the Interior] shall convey the land to the Village Corporation or Corporations, subject to valid existing rights as provided in subsection 14(g).

As to the lands described below, application F–20518 is properly filed and meets the requirements of the Alaska Native Claims Settlement Act and of the regulations issued pursuant thereto. These lands do not include any lawful entry perfected under or being maintained in compliance with laws leading to acquisition of title.

In view of the foregoing, the surface and subsurface estates of the following described lands, containing 4.55 acres, are considered proper for acquisition by Tetlin Native Corporation and are hereby approved for conveyance pursuant to Sec. 19(b) of the Alaska Native Claims Settlement Act:

> U.S. Survey No. 2050, Alaska, situated within the U.S. School Reserve in the village of Tetlin.
> Containing 4.55 acres.

There are no easements pursuant to Sec. 17(b) of ANCSA to be reserved in the above-described lands.

The grant of the above-described lands shall be subject to:

Valid existing rights therein, if any, including but limited to those created by any lease (including a lease issued under Sec. 6(g) of the Alaska Statehood Act of July 7, 1958 (72 Stat. 339, 341; 48 U.S.C. Ch. 2, Sec. 6(g))), contract, permit, right-of-way, or easement, and the right of the lessee, contractee, permittee, or grantee to the complete enjoyment of all rights, privileges, and benefits threby granted to him. Further, pursuant to Sec. 17(b)(2) of the Alaska Native Claims Settlement Act of December 18, 1971 (43 U.S.C. 1601, 1616(b)(2)) (ANCSA), any valid existing right recognized by ANCSA shall continue to have whatever right of access as is now provided for under existing law.

There are no inland water bodies considered to be navigable within the above described lands.

The lands herein approved for conveyance, together with U.S. Survey No. 2547 and U.S. Survey No. 2779 previously approved for conveyance, comprise all of the lands withdrawn for the benefit of the Natives at Tetlin. Tetlin Native Corporation is not eligible for any other land selections. Upon issuance of patent, case file F–20528 will be closed of record.

In accordance with Departmental regulation 43 CFR 2650.7(d), notice of this decision is being published once in the **Federal Register** and once a week, for four (4) consecutive weeks, in the Fairbanks Daily News-Miner. Any party claiming a property interest in lands affected by this decision, an agency of the Federal government, or regional corporation may appeal the decision to the Alaska Native Claims Appeal Board, P.O. Box 2433, Anchorage, Alaska 99510, with a copy served upon both the Bureau of Land Management, Alaska State Office, 701 C Street, Box 13, Anchorage, Alaska 99513, and the Regional Solicitor, Office of the Solicitor, 510 L Street, Suite 408, Anchorage, Alaska 99501. The time limits for filing an appeal are:

1. Parties receiving service of this decision shall have 30 days from the receipt of this decision to file an appeal.

2. Unknown parties, parties unable to be located after reasonable efforts have been expended to locate, and parties who failed or refused to sign the return receipt shall have until October 30, 1980 to file an appeal.

Any party known or unknown who is adversely affected by this decision shall be deemed to have waived those rights which were adversely affected unless an appeal is timely filed with the Alaska Native Claims Appeal Board.

To avoid summary dismissal of the appeal, there must be strict compliance with the regulations governing such appeals. Further information on the manner of and requirements for filing an appeal may be obtained from the Bureau of Land Management, 701 C Street, Box 13, Anchorage, Alaska 99513.

If an appeal is taken, the parties to be served with a copy of the notice of appeal are: